

**SPONSORSHIP AGREEMENT
BETWEEN THE CITY OF CHEYENNE AND
HOLLYFRONTIER CHEYENNE RENEWABLE DIESEL COMPANY, LLC**

1. **Parties.** The parties to this Agreement are the City of Cheyenne, Wyoming, a municipality organized under the laws of the State of Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and HollyFrontier Cheyenne Renewable Diesel Company, LLC, a limited liability company duly organized under the laws of the State of Delaware, 300 Morrie Avenue, Cheyenne, Wyoming 82007 ("HollyFrontier").

2. **Purpose of the Agreement.** The purpose of this Agreement is to designate HollyFrontier as the Presenting Sponsor of the 2022 Superday, the 2022 Superday Tour de Prairie, and the 2022 Superday 5K Walk/Run, a Cheyenne Community Recreation and Events Summer Celebration which is annually hosted in June to kick off Recreation month in July. This Agreement designates HollyFrontier as the Presenting Sponsor with no liability implied, expressed, or written at any event.

3. **Term.** The term of this Agreement will be from the date of the last signature affixed until June 30, 2022.

4. **Payment.** The City of Cheyenne will provide HollyFrontier an invoice to process payment directly to the vendor. HollyFrontier agrees to pay the City the amount of Twenty-Five Thousand Dollars (\$25,000.00) pursuant to the terms of this Agreement.

5. **City's Responsibilities.**

A. As the Presenting Sponsor of the 2022 Superday, the 2022 Superday Tour de Prairie, and the 2022 Superday Family Fun 5K Walk/Run, in exchange for Twenty-Five Thousand Dollars (\$25,000.00) of sponsorship revenue to the City, HollyFrontier will receive:

i. Brand recognition as the presenting sponsor on all print (posters, brochures, banners, registration forms, and newspaper advertising), radio, social media (Facebook, www.CheyenneEvents.org, www.CheyenneRec.org), and television recognition as the Presenting Sponsor of the 2022 Superday, the 2022 Superday Tour de Prairie, and the 2022 Superday Family 5K Walk/Run;

ii. Two main entry locations with tents, tables, chairs, and banner recognizing HollyFrontier as the Presenting Sponsor;

iii. Superday brochures for HollyFrontier employees to distribute to and engage with participants;

- iv. Ten complimentary registrations for the Superday Tour de Prairie; and
- v. Twenty complimentary registrations for the Superday Family 5K Walk/Run.

6. **General Provisions.**

A. **Amendments.** Any changes, modifications, revisions, or amendments to this Agreement, which are mutually agreed upon by the parties, will be incorporated by writing.

B. **Applicable Law.** The construction, interpretation, and enforcement of this Agreement is governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this Agreement and parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

C. **Compliance with Laws.** HollyFrontier agrees to keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this Agreement.

D. **Notice.** All notices arising out of or from the provisions of this Agreement shall be in writing and given to the parties either by regular mail or delivery in person.

E. **Termination.** Either party may termination this Agreement for cause without liability in the event either party fails to perform.

F. **Governmental Immunity.** The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retain all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

G. **Indemnification.** Each party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend, or indemnify the other.

H. **Reporting.** The City of Cheyenne will provide HollyFrontier an estimated media value (paid and in-kind) and list of elements the vendor is spending/using to promote the event.

I. **Entirety of Agreement.** This Agreement represents the entire and integrated Agreement between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.

In witness thereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

HollyFrontier Cheyenne Renewable Diesel Company, LLC

Date

By: _____

Print Name: _____

Title: _____

City of Cheyenne, Wyoming

Date

By: _____
Patrick Collins, Mayor

(SEAL)

Attest:

Kristina F. Jones, City Clerk